

STATE OF NEW YORK

1210--C

2025-2026 Regular Sessions

IN ASSEMBLY

January 9, 2025

Introduced by M. of A. PAULIN, DINOWITZ, SEAWRIGHT, ROSENTHAL, ZINERMAN -- read once and referred to the Committee on Codes -- recommitted to the Committee on Codes in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- again reported from said committee with amendments, ordered reprinted as amended and recommitted to said committee -- again reported from said committee with amendments, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the penal law and the general business law, in relation to establishing a waiting period before a firearm, shotgun or rifle may be delivered to a person

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Subdivision 12 of section 400.00 of the penal law, as
2 amended by chapter 207 of the laws of 2022, is amended to read as
3 follows:
4 12. Records required of gunsmiths and dealers in firearms. In addition
5 to the requirements set forth in article thirty-nine-BB of the general
6 business law, any person licensed as gunsmith or dealer in firearms
7 shall keep a record book approved as to form, except in the city of New
8 York, by the superintendent of state police. In the record book shall be
9 entered at the time of every transaction involving a firearm the date,
10 name, age, occupation and residence of any person from whom a firearm is
11 received or to whom a firearm is delivered, and the calibre, make,
12 model, manufacturer's name and serial number, or if none, any other
13 distinguishing number or identification mark on such firearm. Before
14 delivering a firearm to any person, the licensee shall require [~~him~~]
15 such person to produce either a license valid under this section to
16 carry or possess the same, or proof of lawful authority as an exempt
17 person pursuant to section 265.20 of this chapter and [~~either~~] (a) [~~the~~
18 ~~National Instant Criminal Background Check System (NICS) or its succes-~~

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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~~1 sor has issued a "proceed" response to the licensee, or (b) thirty]~~
2 three calendar days have elapsed since the date the licensee contacted
3 ~~[NICS]~~ the New York State National Instant Background Check System ("NYS
4 NICS") or its successor to initiate a national instant criminal back-
5 ground check and ~~(b) NYS NICS has [not-notified]~~ issued a "proceed"
6 response to the licensee ~~[that]; provided, however, that for a person~~
7 with a valid license to purchase, carry or possess a pistol, revolver,
8 or semiautomatic rifle pursuant to this section, the licensed gunsmith
9 or dealer in firearms may deliver such pistol, revolver, or semiautomat-
10 ic rifle, other than an assault weapon or disguised gun, to such
11 licensee upon receipt of a "proceed" response from NYS NICS or its
12 successor. If, after thirty calendar days, NYS NICS has not issued a
13 response to the licensee for the person requesting transfer of the
14 firearm, the licensee may transfer the firearm to such person ~~[should be~~
15 ~~denied]~~ at the licensee's discretion. In addition, before delivering a
16 firearm to a peace officer, the licensee shall verify that person's
17 status as a peace officer with the division of state police. After
18 completing the foregoing, the licensee shall remove and retain the
19 attached coupon and enter in the record book the date of such license,
20 number, if any, and name of the licensing officer, in the case of the
21 holder of a license to carry or possess, or the shield or other number,
22 if any, assignment and department, unit or agency, in the case of an
23 exempt person. The original transaction report shall be forwarded to the
24 division of state police within ten days of delivering a firearm to any
25 person, and a duplicate copy shall be kept by the licensee. The super-
26 intendent of state police may designate that such record shall be
27 completed and transmitted in electronic form. A dealer may be granted a
28 waiver from transmitting such records in electronic form if the super-
29 intendent determines that such dealer is incapable of such transmission
30 due to technological limitations that are not reasonably within the
31 control of the dealer, or other exceptional circumstances demonstrated
32 by the dealer, pursuant to a process established in regulation, and at
33 the discretion of the superintendent. Records assembled or collected
34 for purposes of inclusion in the database created pursuant to section
35 400.02 of this article shall not be subject to disclosure pursuant to
36 article six of the public officers law. The record book shall be main-
37 tained on the premises mentioned and described in the license and shall
38 be open at all reasonable hours for inspection by any peace officer,
39 acting pursuant to ~~[his]~~ such peace officer's special duties, or police
40 officer. In the event of cancellation or revocation of the license for
41 gunsmith or dealer in firearms, or discontinuance of business by a
42 licensee, such record book shall be immediately surrendered to the
43 licensing officer in the city of New York, and in the counties of Nassau
44 and Suffolk, and elsewhere in the state to the executive department,
45 division of state police.

46 § 2. Section 400.20 of the penal law, as added by chapter 129 of the
47 laws of 2019, is amended to read as follows:

48 § 400.20 Waiting period in connection with the sale or transfer of a
49 rifle or shotgun.

50 When a national instant criminal background check is required pursuant
51 to state or federal law to be conducted through the New York State
52 National Instant [Criminal] Background Check System [NICS] ~~(NICS)~~ (NYS NICS)
53 or its successor in connection with the sale or transfer of a rifle or
54 shotgun to any person, before delivering a rifle or shotgun to such
55 person, ~~[either] (a) [NICS has issued a "proceed" response to the seller~~
56 ~~or transferor, or (b) thirty]~~ three calendar days shall have elapsed

1 since the date the seller or transferor contacted [~~NICS~~] NYS NICS to
2 initiate a national instant criminal background check and (b) NYS NICS
3 has [~~not notified~~] issued a "proceed" response to the seller or transfe-
4 rer [~~that~~]. If, after thirty calendar days, NYS NICS has not issued a
5 response to the seller or transferor for the person requesting transfer
6 of the rifle or shotgun, the seller or transferor may transfer the rifle
7 or shotgun to such person [~~should be denied~~] at the seller or
8 transferor's discretion.

9 § 3. Subdivision 1 of section 897 of the general business law, as
10 amended by chapter 129 of the laws of 2019, is amended to read as
11 follows:

12 1. A national instant criminal background check shall be conducted in
13 accordance with section two hundred twenty-eight of the executive law
14 and no person shall sell or transfer a firearm, rifle or shotgun at a
15 gun show, except in accordance with the provisions of 18 U.S.C. 922(t),
16 and provided that before delivering a firearm, rifle or shotgun to any
17 person, [~~either~~] (a) [~~the National Instant Criminal Background Check~~
18 ~~System (NICS) or its successor has issued a "proceed" response to the~~
19 ~~seller or transferor, or (b) thirty~~] three calendar days shall have
20 elapsed since the date the seller or transferor contacted [~~NICS~~] the New
21 York State National Instant Background Check System ("NYS NICS") or its
22 successor to initiate a national instant criminal background check and
23 (b) NYS NICS has [~~not notified~~] issued a "proceed" response to the sell-
24 er or transferor [~~that~~]; provided, however, that for a person with a
25 valid license to purchase, carry or possess a pistol, revolver, or semi-
26 automatic rifle, pursuant to section 400.00 of the penal law, the seller
27 or transferor may deliver such pistol, revolver, or semiautomatic rifle,
28 other than an assault weapon or disguised gun, to such licensee upon
29 receipt of a "proceed" response from NYS NICS or its successor. If,
30 after thirty calendar days, NYS NICS has not issued a response to the
31 seller or transferor for the person requesting transfer of the firearm,
32 rifle or shotgun, the seller or transferor may transfer the firearm,
33 rifle or shotgun to such person [~~should be denied~~] at the seller or
34 transferor's discretion.

35 § 4. Subdivisions 1 and 2 of section 898 of the general business law,
36 subdivision 1 as amended by chapter 129 of the laws of 2019 and subdivi-
37 sion 2 as amended by chapter 371 of the laws of 2022, are amended to
38 read as follows:

39 1. In addition to any other requirements pursuant to state and federal
40 law, all sales, exchanges or disposals of firearms, rifles or shotguns
41 shall be conducted in accordance with this section unless such sale,
42 exchange or disposal is conducted by a licensed importer, licensed
43 manufacturer or licensed dealer, as those terms are defined in 18 USC §
44 922, when such sale, exchange or disposal is conducted pursuant to that
45 person's federal firearms license or such sale, exchange or disposal is
46 between members of an immediate family. When a sale, exchange or
47 disposal is conducted pursuant to a person's federal firearms license,
48 before delivering a firearm, rifle or shotgun to any person, [~~either~~]
49 (a) [~~the National Instant Criminal Background Check System (NICS) or its~~
50 ~~successor has issued a "proceed" response to the federal firearms licen-~~
51 ~~see, or (b) thirty~~] three calendar days shall have elapsed since the
52 date the federal firearms licensee contacted [~~NICS~~] the New York State
53 National Instant Background Check System ("NYS NICS") or its successor
54 to initiate a national instant criminal background check and (b) NYS
55 NICS has [~~not notified~~] issued a "proceed" response to the federal
56 firearms licensee [~~that~~]; provided, however, that for a person with a

1 valid license to purchase, carry or possess a pistol, revolver, or semi-
2 automatic rifle, pursuant to section 400.00 of the penal law, the feder-
3 al firearm licensee may deliver such pistol, revolver, or semiautomatic
4 rifle, other than an assault weapon or disguised gun, to such licen-
5 see upon receipt of a "proceed" response from NYS NICS or its successor.
6 If, after thirty calendar days, NYS NICS has not issued a response to
7 the federal firearms licensee for the person requesting transfer of the
8 firearm, rifle or shotgun, the federal firearm licensee may transfer the
9 firearm, rifle or shotgun to such person ~~[should be denied]~~ at the
10 federal firearm licensee's discretion. For purposes of this section,
11 "immediate family" shall mean spouses, domestic partners, children and
12 step-children.

13 2. Before any sale, exchange or disposal pursuant to this article, a
14 national instant criminal background check must be completed by a dealer
15 who shall submit a request to the division of state police pursuant to
16 section two hundred twenty-eight of the executive law to conduct such
17 check. Before a dealer who has submitted a request to the division of
18 state police to conduct a national instant criminal background check
19 delivers a firearm, rifle or shotgun to any person, ~~[either]~~ (a) ~~[NICS~~
20 ~~shall have issued a "proceed" response, or (b) thirty]~~ three calendar
21 days shall have elapsed since the date the dealer submitted a request to
22 the division of state police to contact the ~~[NICS]~~ NYS NICS or its
23 successor to initiate a national instant criminal background check and
24 ~~(b) NYS NICS has [not notified]~~ issued a "proceed" response to the
25 ~~[division of state police that]~~ dealer; provided, however, that for a
26 person with a valid license to purchase, carry or possess a pistol,
27 revolver, or semiautomatic rifle, the dealer may deliver a pistol,
28 revolver, or semiautomatic rifle, other than an assault weapon or
29 disguised gun, to such licensee upon receipt of a "proceed" response
30 from NYS NICS or its successor. If, after thirty calendar days, NYS
31 NICS has not issued a response to the dealer for the person requesting
32 transfer of the firearm, rifle or shotgun, the dealer may transfer the
33 firearm, rifle or shotgun to such person ~~[should be denied]~~ at the deal-
34 er's discretion.

35 § 5. This act shall take effect on the sixtieth day after it shall
36 have become a law.